

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS

STATE OF COLORADO

Case No. 2012-6121

STIPULATION FOR INTERIM CESSATION OF PRACTICE

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO OF JAMES
COUGHLIN, LICENSE NO. LPC 6557,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners ("the Board") and James Coughlin ("Respondent") as follows:

1. The Board has jurisdiction over the person of Respondent and the subject matter of this Stipulation for Interim Cessation of Practice ("Stipulation").
2. Respondent was licensed to practice as a licensed professional counselor ("LPC") in the State of Colorado at all times relevant herein.
3. On May 17, 2013, the Board reviewed case number 2012-6121 and subsequently concluded that Respondent may have violated the Mental Health Practice Act, §12-43-101, *et. seq.*, C.R.S., and may not be able to practice licensed professional counseling with reasonable skill and safety to his clients.
4. The parties have agreed to stay potential disciplinary proceedings pending the outcome of a mental status evaluation, to include psycho-sexual and substance abuse assessments, by a Board-approved evaluator. Therefore, the parties have agreed to enter into this Stipulation, pursuant to which disciplinary proceedings are stayed until Respondent obtains a mental status evaluation, to include psycho-sexual and substance abuse assessments, the evaluation is reviewed and approved by the Board, and the Board makes further determinations as described in paragraph 11, below.
5. Respondent agrees that he will not engage in the practice of licensed professional counseling, as defined in §12-43-602.5(1) and (2), C.R.S., while this Stipulation is in effect.
6. Respondent shall obtain a mental status evaluation by a Board-approved evaluator. Respondent shall submit, in writing, a proposed evaluator for the Board's approval. Respondent shall include a Board-approved application from the proposed evaluator with an attached curriculum vita or resume. The proposed evaluator shall meet the following criteria:

- a. The evaluator shall be a currently practicing LPC in the State of Colorado;
 - b. It is recommended that the evaluator have a minimum of five years of experience and not have been subject to professional discipline; and
 - c. The evaluator shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.
7. Respondent shall provide to the Board-approved evaluator a copy of this Stipulation and all information and documents requested by the evaluator or ordered by the Board to be provided to the evaluator.
8. The Board-approved evaluator shall submit a written report to the Board with findings and recommendations as to whether Respondent has any conditions that may endanger the health or safety of clients under his care and whether Respondent can practice licensed professional counseling with skill and safety for his clients. The Board will review the report to determine a further course of action with respect to Respondent and his practice of licensed professional counseling.
9. The Board agrees that it will not institute disciplinary proceedings while this Stipulation is in effect as long as Respondent remains in compliance with this Stipulation and as long as the Board does not learn of substantially new information that would warrant action.
10. Nothing in this Stipulation shall constitute disciplinary action or a finding that Respondent has engaged in substandard practice. The Board has made no final determinations regarding Respondent's professional competency or professional conduct. This Stipulation shall constitute a public record, but is not reportable to the National Practitioner Databank.
11. Once the reason for the Interim Cessation of Practice has been resolved to the satisfaction of the Board, the Board will make a further determination on the case, lift the Interim Cessation of Practice as appropriate, and either proceed with disciplinary action or dismiss the case. Should the Board proceed with discipline, nothing in this Stipulation prevents the Board from ordering a summary suspension should the Board determine that Respondent is unable to practice with reasonable skill and safety and/or emergency action should be taken under §§ 24-4-104 and 12-43-224(2) (c) (II), C.R.S .
12. Nothing in this Stipulation shall preclude the Board from initiating disciplinary action on any other disciplinary matter, other than case number 2012-6121, that comes before the Board pursuant to §12-43-222, C.R.S., or from issuing a Final Agency Order on a case other than case number 2012-6121, even while this Stipulation is in effect.
13. The terms of this Stipulation have been mutually negotiated and determined.
14. Both parties acknowledge that they are entering into this Stipulation voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Stipulation.

15. This Stipulation and all its terms and conditions constitute a valid Board Order for purposes of §12-43-222(1) (b), C.R.S.

16. Respondent acknowledges and agrees that any violation of this Stipulation shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for further disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Stipulation, and this Stipulation shall remain operative and in full force and effect.

17. This Stipulation constitutes the entire agreement between Respondent and the Board. There are no other promises expressed or implied. In the event that any provision of this Stipulation is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Stipulation shall be given full force and effect.

18. Any expenses incurred or associated with this Stipulation in order to comply with any of the requirements thereof shall be the sole responsibility of Respondent and not the Board.

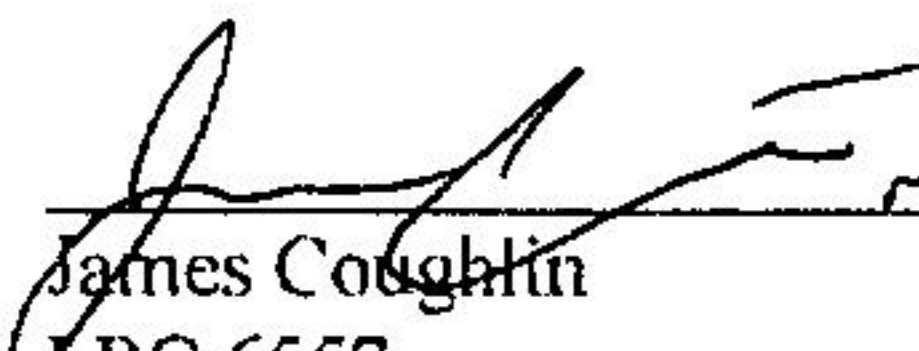
19. This Stipulation shall become an order of the Board when it is accepted and signed by the Program Director or authorized Board representative.

20. This Stipulation shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Board, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Board. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Board.

21. This Stipulation shall be admissible as evidence at any hearing held before the Board.

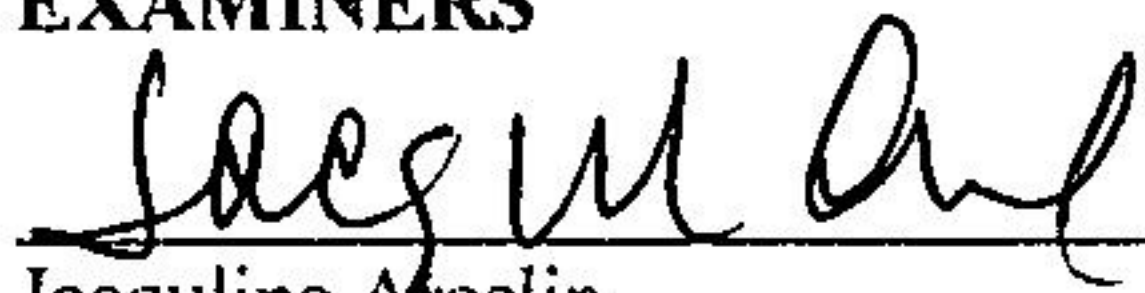
22. This Stipulation shall constitute a public record in the custody of the Board.

RESPONDENT


James Coughlin
LPC 6557

Dated: 7/5/13

**COLORADO STATE BOARD OF
LICENSED PROFESSIONAL COUNSELOR
EXAMINERS**


Jacqueline Arcelin
Acting Program Director

Effective this 8 day of
July, 2013.